

Building (Private Streets and Access Roads) Regulations

(Cap. 123 sub. leg. G)

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Building (Private Streets and Access Roads) Regulations

(Cap. 123, section 38)

[1 January 1960]

(*Format changes—E.R. 4 of 2021*)

Part I

Preliminary

1. Citation

These regulations may be cited as the Building (Private Streets and Access Roads) Regulations.

2. Interpretation

In these regulations, unless the context otherwise requires—

area of mixed usage (混合用途區) means an area developed or to be developed with buildings used or to be used wholly or partly for purposes of habitation and with buildings used or to be used wholly or partly for the purposes of industrial undertakings or of offices or of other commercial uses, not being a residential area or an industrial area;

carriageway (車路) means that part of a private street, cul-de-sac or access road used or intended for use by vehicular traffic;

cul-de-sac (盡頭路) means a private street which is closed at one end;

footpath (行人路) means that part of a private street, cul-de-sac or access road used or intended for use only by pedestrian traffic;

industrial area (工業區) means an area developed or to be developed primarily with buildings used or to be used wholly or mainly for the purposes of industrial undertakings or of offices or of other commercial uses;

pedestrian way (行人徑) means a private street used or intended for use only by pedestrian traffic;

public street (公眾街道) means a street vested in and maintained by the Government;

residential area (住宅區) means an area developed or to be developed primarily with buildings used or to be used wholly or mainly for purposes of habitation.

Part II

Planning of Private Streets and Access Roads

3. New streets, etc. to be accessible from existing street, etc.

Every new private street, cul-de-sac and access road shall be accessible from an existing street or another new street.

4. Footpaths

- (1) Every private street and cul-de-sac shall have a footpath on each side thereof.
- (2) Every access road shall have a footpath on at least one side thereof.

5. Width of private streets and cul-de-sacs

- (1) (a) In every residential area—
 - (i) the width of the carriageway of and of each footpath in any private street shall be not less than the width specified in Table I; and
 - (ii) the width of the carriageway of any cul-de-sac shall be not less than 5 m and the width of each footpath therein shall be not less than 2.75 m.

Table I

Type of street	Width of carriageway	Width of footpath
Major	7.3 m	3.7 m
Minor	5.5 m	2.75 m

(L.N. 294 of 1976)

- (b) In every industrial area and in every area of mixed usage—
- (i) the width of the carriageway of and of each footpath in any private street shall be not less than the width specified in Table II; and
 - (ii) the width of the carriageway of any cul-de-sac shall be not less than 7.3 m and the width of each footpath therein shall be not less than 2.75 m.

Table II

Type of street	Width of carriageway	Width of footpath
Major	10.5 m	3.7 m
Minor	7.3 m	2.75 m

(L.N. 294 of 1976)

- (2) For the purposes of this regulation—

- (a) the Building Authority shall determine—
 - (i) whether any area is a residential area, an industrial area or an area of mixed usage; and
 - (ii) whether a street is a major or a minor street; and
- (b) any cul-de-sac which is more than 120 m in length measured along the centre line of the carriageway thereof from the junction of the cul-de-sac with a street which is a thoroughfare, shall be deemed to be a private street.

(L.N. 294 of 1976)

6. Width of access roads

- (1) Save as provided in paragraph (2), the width of the carriageway of every access road shall be not less than 5 m and the width of the footpath therein shall be not less than 1.6 m.
- (2) Where—
 - (a) an access road provides or will provide access to not more than 12 separate buildings or not more than 24 flats, whether such flats are in the same building or not; and
 - (b) the aggregate of the areas of the floors in all the buildings or flats does not exceed 3 500 m²; and
 - (c) spaces, to enable vehicles to pass, are provided at distances along the access road not exceeding 60 m in length,

the width of the carriageway of the access road may be not less than 2.75 m and the width of the footpath not less than 1.5 m.

(L.N. 294 of 1976)

7. Pedestrian ways

Every pedestrian way shall be—

- (a) not less than 3.5 m wide; and (*L.N. 294 of 1976*)
- (b) so protected as to prevent vehicles entering therein.

8. Kerb radius

At every junction of a private street, cul-de-sac or access road with any street, the radius of the kerb line shall—

- (a) where the footpaths in the streets or in the cul-de-sac or access road and the street, as the case may be, are of the same width, be not less than the width of such footpaths; or
- (b) where such footpaths are of different widths, be not less than the width of the wider footpath.

9. Junctions to be at right angles, etc.

The junction of any private street, cul-de-sac or access road with any street shall be made at right angles, and

- (a) where the junction is of a new private street or cul-de-sac with an existing street, the line of the carriageway of the new private street or cul-de-sac shall continue at such angle for a distance of not less than 30 m from the place at which such street or cul-de-sac enters the junction;
- (b) where the junction is of 2 or more new private streets, the line of the carriageway or each such street shall continue at such angle for a distance of not less than 30 m from the place at which each street enters the junction; and

- (c) where the junction is of an access road with a street, the line of the carriageway of the access road shall continue at such angle for a distance of not less than 7.5 m from the place at which such access road enters the junction.

(L.N. 294 of 1976)

10. No undulation on major street

The carriageway of any minor street shall, at the junction of such carriageway with the carriageway of a major street, be graded into the carriageway of such major street in such a manner as to avoid undulation on the major street.

11. Gradients

- (1) Subject to the provisions of paragraphs (2) and (3), no private street, cul-de-sac or access road shall have a gradient greater than 1 in 6.
- (2) In every private street and cul-de-sac, the gradient shall, for a distance of 30 m from the junction of the private street or cul-de-sac with any street, not exceed 1 in 30.
- (3) In every access road, the gradient shall, for a distance of 7.5 m from the junction of the access road with any street, not exceed 1 in 30.

(L.N. 294 of 1976)

12. Horizontal curves

- (1) The radius of any horizontal curve in any private street or cul-de-sac shall be not less than 30 m measured to the centre line of the carriageway of the street or cul-de-sac.
- (2) The radius of any horizontal curve in an access road shall be not less than 9 m, measured to the centre line of the carriageway of the access road.

*(L.N. 294 of 1976)***13. Vertical curves**

Any vertical curve in a private street, cul-de-sac or access road shall be such that from a point 1 m above any part of the carriageway thereof a clear view can be obtained of the top of an object 1 m high at all distances along the carriageway up to 40 m from such point.

*(L.N. 294 of 1976)***14. Widening of private streets and cul-de-sacs on curve in certain cases**

Where, under regulation 27, the Building Authority permits the radius of a horizontal curve in any private street or cul-de-sac to be less than 30 m, the carriageway thereof shall be gradually widened, on the outer edge of the curve, from the tangent points to the middle point of the curve so that, at the middle point of the curve, the widening is not less than that specified in Table III. *(L.N. 294 of 1976)*

Table III

Width of carriageway	Permitted radius of curve at centre line	Minimum widening
6 m or less	Less than 18 m	1.2 m
	18 m to 24 m inclusive	1.0 m
	Over 24 m	0.6 m
More than 6 m	Less than 18 m	1.0 m

Width of carriageway	Permitted radius of curve at centre line	Minimum widening
	18 m to 24 m inclusive	0.6 m
	Over 24 m	0.3 m

(L.N. 294 of 1976)

15. Turning space for vehicles in cul-de-sacs and access roads

- (1) There shall be provided, at the closed end of every cul-de-sac, adequate space to enable vehicles to turn.
- (2) Where any access road is not a thoroughfare, there shall be provided, at that end of the access road furthest from its junction with a street, adequate space to enable vehicles to turn.

Part III

Construction of Private Streets, Access Roads and Service Lanes

(L.N. 152 of 1971)

16. Surfacing of private streets, cul-de-sacs and access roads

The carriageway of every private street, cul-de-sac and access road shall be surfaced with—

- (a) concrete not less than 150 mm thick, laid on rolled hardcore not less than 75 mm thick; or *(L.N. 439 of 1990)*
- (b) bitumen macadam not less than 75 mm thick, laid on rolled hardcore not less than 200 mm thick, and covered with a layer of fine bitumen macadam not less than 25 mm thick; or
- (c) other approved material.

(L.N. 156 of 1977)

17. Surfacing of pedestrian ways and service lanes

Every pedestrian way and service lane shall be surfaced with—

- (a) concrete not less than 100 mm thick laid on rolled hardcore not less than 75 mm thick; or *(L.N. 439 of 1990)*
- (b) bitumen macadam not less than 50 mm thick, laid on rolled hardcore not less than 75 mm thick, and covered with a layer of fine bitumen macadam not less than 25 mm thick; or
- (c) other approved material.

(L.N. 156 of 1977)

18. Surfacing of footpaths

Every footpath shall be surfaced with—

- (a) concrete not less than 50 mm thick, and covered with granolithic paving not less than 12.5 mm thick; or *(L.N. 294 of 1976; L.N. 439 of 1990)*
- (b) other approved material.

19. Kerbstones

- (1) Every kerbstone shall be 150 mm in width, 300 mm in height and not less than 750 mm in length. *(L.N. 294 of 1976)*
- (2) Every kerbstone in a private street or cul-de-sac shall be constructed of granite and every kerbstone in an access road shall be constructed of granite or concrete. *(L.N. 439 of 1990)*

20. Height of kerbs

The top of every kerb shall be not less than 75 mm nor more than 175 mm above the level of the channel adjacent thereto.

(L.N. 294 of 1976)

21. Camber and crossfall

- (1) Save where a bend in any private street, cul-de-sac or access road is super-elevated, the carriageway therein shall have a camber of 1 in 40.
- (2) Every footpath shall have a crossfall towards the kerb of 1 in 48.

22. Grade of manhole covers and gratings

- (1) Any manhole cover or grating situated in the carriageway of any private street, cul-de-sac or access road shall be of a

grade equal to Grade A as specified in the current relevant British Standard Specification.

- (2) Any manhole cover or grating in any footpath, pedestrian way or service lane shall be of a grade equal to Grade B as specified in the current relevant British Standard Specification.

23. Shape of manhole covers

- (1) The cover of every manhole, in a private street, cul-de-sac, access road, pedestrian way or service lane, provided for a drain or sewer provided for the carriage of foul water shall be rectangular on plan.
- (2) The cover of every such manhole provided for a drain or sewer provided for the carriage of surface water shall be rounded on plan.
- (3) For the purposes of this regulation, the expressions ***foul water*** (穢水) and ***surface water*** (地面水) shall have the meaning assigned to them by regulation 2 of the Building (Standards of Sanitary Fitments, Plumbing, Drainage Works and Latrines) Regulations (Cap. 123 sub. leg. I). (*E.R. 4 of 2021*)

24. Drainage of private streets, etc.

- (1) Every private street, cul-de-sac, access road, pedestrian way and service lane shall be provided with channels and drains and sewers for the carriage of rain-water and surface water.
- (2) The size and gradient of every such channel, drain or sewer shall be adequate to carry off all rain-water falling on and surface water draining to the private street, cul-de-sac, access road, pedestrian way or service lane.
- (3) For the purposes of this regulation, the intensity of rainfall shall be calculated—
 - (a) where the Time of Concentration is less than 30 minutes, at the rate of not less than 150 mm/h; and

- (b) where the Time of Concentration is 30 minutes or more than 30 minutes, at the rate of not less than 100 mm/h. (*L.N. 294 of 1976*)

25. Channels

- (1) Every channel in any private street, cul-de-sac, access road and pedestrian way shall be—
 - (a) constructed of concrete not less than 150 mm in thickness nor less than 300 mm in width; (*L.N. 294 of 1976; L.N. 439 of 1990*)
 - (b) laid to a fall of 1 in 30 towards the kerb in cross-section; and
 - (c) save as provided in paragraph (2), laid to a fall of not less than 1 in 100 in longitudinal section.
 - (2) Where the Building Authority is satisfied that it is impracticable to lay any channel to a fall of not less than 1 in 100 in longitudinal section, he may permit the channel to be laid to a fall of not less than 1 in 250.
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Part IV

Miscellaneous

26. Any work in public street to be carried out by Building Authority

(1) Where—

- (a) the forming or laying out of any private street, cul-de-sac, access road or pedestrian way; or
- (b) the provision of any means of access to a building fronting or abutting on a public street,

necessitates the carrying out of any work in or the alteration of any public street, such work or alteration shall be carried out by the Building Authority who may recover the cost thereof from the owner of the private street, cul-de-sac, access road, pedestrian way or building, as the case may be.

- (2) Where, in contravention of this regulation, any work has been carried out otherwise than by the Building Authority, the Building Authority may remove, alter or demolish such work and may carry out such other work as he considers necessary, and may recover the cost of any work carried out under this paragraph as if such work had been carried out pursuant to the provisions of paragraph (1).

27. Power of Building Authority to waive requirements of regulations 9, 11, 12 and 13 and to require other work to be carried out in lieu thereof

Where, in any case, the Building Authority is satisfied that, owing to the nature of the ground or for other sufficient reason, compliance with the requirements of regulation 9, 11, 12 or 13 is impracticable, he may waive such requirement and, upon any

such waiver may, by order in writing, require such street works to be carried out, in lieu of compliance with such requirement, as he considers necessary.

28. Power of Building Authority to waive requirements of regulation 16

Where adequate tests have been carried out to determine the bearing capacity of the ground forming the foundation of any carriageway and the results thereof have been submitted to the Building Authority, the Building Authority may, if he is satisfied with the tests and the results thereof, waive the requirements of regulation 16 and, upon such waiver may, by order in writing, require materials used in the surfacing of the carriageway to be based on the results of such tests.